

SUPREME COURT STATE OF NEW YORK
BRONX COUNTY

X

MALIK BRACY

Index No.
Date Index No. Purchased

SUMMONS

Plaintiff,

- against -

**Plaintiff Designates Bronx
County as the Place of Trial
Venue is based on CPLR 509
Jury Trial Demanded**

CITY OF NEW YORK, P.O. VINCENT BRACCO,
SHIELD NO. 26344, 23rd PRECINCT, IN HIS INDIVIDUAL
CAPACITY, P.O. ANDREW N. AIELLO, TAX ID NO. 959447,
IN HIS INDIVIDUAL CAPACITY.

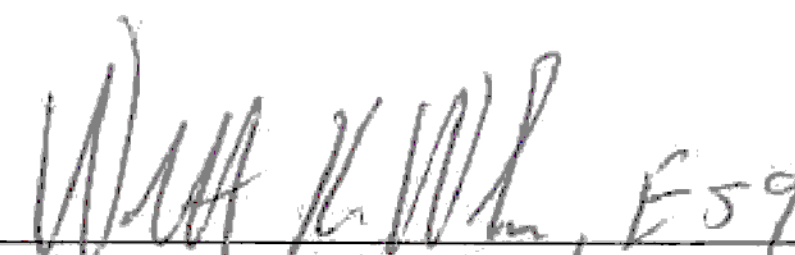
Defendants,

X

You are hereby Summoned to answer the complaint in this action and to serve a copy of your answer or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

DATED: January 27, 2022
Bronx, New York

By


Welton K. Wisham, Esq.

The Law Offices of Welton K. Wisham
1200 Waters Place, Suite 105
Bronx, New York 10461
718- 924-3557 Office
718-678-8062 Fax

Defendants Address:

The New York City Police Department
One Police Plaza,
New York, New York 10007

City of New York Department of Law
100 Church Street
New York, New York 10007

SUPREME COURT STATE OF NEW YORK
BRONX COUNTY

X

MALIK BRACY

Plaintiff,

- against -

**ECF
COMPLAINT**
Index No.**Plaintiff Designates Bronx
County as the Place of Trial
Jury Trial Demanded**CITY OF NEW YORK, P.O. VINCENT BRACCO,
SHIELD NO. 26344, 23rd PRECINCT, IN HIS INDIVIDUAL
CAPACITY, AND P.O. ANDREW N. AIELLO, TAX ID NO. 959447,
IN HIS INDIVIDUAL CAPACITY.

Defendants,

X

Plaintiff, Malik Bracy, by his attorney, Welton K. Wisham of The Law office of Welton K. Wisham, alleges upon information, and belief, the following against Defendants, The City of New York, and Police Officers Vincent Bracco and Andrew N. Aiello, who are believed to be assigned to the 23rd police precinct located at 162 East 102 St. New York, New York.: that ;

PRELIMINARY STATEMENT

1. This action arises out of the Defendants' roles in inflicting unreasonable force upon Plaintiff Malik Bracy during the course of Plaintiff's arrest on August 13, 2021.
2. Officers Bracco and Aiello can be seen grabbing and throwing Mr. Bracy to the ground inside a grocery store as the Plaintiff was waiting to pay for items which he had purchased.
3. Plaintiff was standing inside the store when the Defendant officers ran inside the store and grabbed Plaintiff and threw him to the ground as Plaintiff can be heard screaming and pleading for the officers to stop hitting him.

4. The incident was captured on one of the officers' body cam which clearly shows that the Plaintiff had not resisted arrest , was not fleeing and was not a threat to the officers, nor did Plaintiff assault the officers or destroy property as alleged by the Defendants.

5. The video depicts the officers' frightening use of force without probable cause or legal justification and Plaintiff nonresistance yelling and screaming for help..

6. Plaintiff sustained substantial and multiple injuries to his face and body from the officers' unlawful and unreasonable assault for which this action is brought.

7. On the date of this incident complained of, Plaintiff Malik Bracy was observed by officer Vincent Bracco of "being with a large disorderly group creating a public disturbance and walking across the street disobeying traffic signals on multiple occasions impeding the steady flow of traffic".

8. Officer Bracco got out of his police vehicle and without hesitation or discussion grabbed Mr. Bracy and with the assistance of officer Aiello proceeded to throw Plaintiff to the ground and beat Plaintiff repeatedly in his face and body. Mr. Bracy officered no resistance whatsoever to the officers as shown on the video tape.

9. Officer Bracco submitted fabricated police reports accusing Plaintiff of resisting arrest and pushing and shoving the officers and flailing arms from officers in an attempt to escape. The video tape however, does not show Plaintiff pushing or shoving the officers or flailing his arms.

10. A review of the video tape however, clearly shows the officers infliction of wanton, reckless, willful and intentional use of extremes and unreasonable force committed by the Defendants against Plaintiff who posed no risk to the safety of the Defendant officers at the time of the unreasonable seizure complained of herein.

11. Mr. Bracy now seeks compensation for the officer's unreasonable seizure, and excessive and unreasonable infliction of substantial force in violation of the Fourth Amendment to the Constitution of the United States pursuant to 42 U.S.C. Section 1983.

JURISDICTION

12. This action arises under the Fourth, and Fourteenth Amendments to the Constitution of the United States.

13. This Court has personal jurisdiction over the defendants because the defendants committed the tortuous acts within the State of New York causing injury to the Plaintiff.

14. This Court also has concurrent jurisdiction over Plaintiff's civil rights causes of action predicated upon 42 U. S. C. Section 1983.

VENUE

15. This action is brought in Supreme Court Bronx County. Venue is predicated upon CPLR Section 503 due to Plaintiff's residence at the time this action is commenced.

PARTIES

16. At all times hereinafter mentioned throughout this Complaint, Plaintiff Malik Bracy is a citizen of the United States of America.

17. Plaintiff is a resident of the Bronx, New York.

18. Defendant, Police Officer Vincent Bracco, Shield No. 26344, was at all times relevant herein, a duly appointed police officer employed by the New York City Police Department and is believed to be assigned to the 23rd police precinct located at 162 East 102nd St. New Yor, New York.

19. Officer Bracco at all times herein was acting withing the scope of his employment and under color of law on the date of Plaintiff's arrest.

20. Defendant, police officer Andrew N. Aiello was at all times relevant herein, a duly appointed police officer employed by the New York City Police Department and is believed to be assigned to the 23rd police precinct located at 162 East 102nd St. New York, New York.

21. Officer Aiello at all times herein was acting within the scope of his employment and under color of law on the date of Plaintiff's arrest, August 13, 2021.

22. The Defendant, City of New York is a municipal corporation within the State of New York. Pursuant to Section 431 of its Charter, the City of New York has established and maintains the New York City Police Department as a constituent department or agency.

23. At all times relevant hereto, the City of New York employed the defendant Police Officers involved in this incident.

24. The individual defendants involved in the incident underlying this lawsuit were at all times mentioned in this complaint agents, servants and employees acting within the scope of their employment by Defendant City of New York and were duly appointed police officers in the New York City Police Department acting in their official capacity and under color of law, that is under color of law of the Constitution, statutes, laws, charter, ordinances, rules, regulations, custom and usages of the State of New York and the City of New York.

STATEMENT OF FACTS

25. On August 13, 2021, Plaintiff had entered a commercial store located at 1550 Madison Ave, in the vicinity of 104th and 105th Street, New York City New York.

26. Mr. Bracy was walking in the middle of the street from East 104th St towards Madison Ave, in the City of New York, on his way to a store that sold tee shirts.

27. As Plaintiff was standing inside the store he saw a tee shirt hanging from behind the counter and asked the cashier if she would allow him to see the shirt.

28. As Plaintiff was standing in the store waiting for the cashier to get the shirt two police officers entered the store and suddenly and without warning grabbed the Plaintiff from behind and threw Mr. Bracy to the ground.

29. Plaintiff didn't know what was happening to him or why and began to holler and scream "what are you doing?" what are you doing"?

30. Officers Vincent Bracco and his partner Andrew Aiello, as seen on the police body cam began to violently attack the Plaintiff without warning and without justification.

31. The Video tape clearly shows that Plaintiff posed no threat to the officers at the time of the attack nor was Plaintiff resisting arrest.

32. The officers seized the Plaintiff by gabbing and throwing the Plaintiff on the ground.

33. The officers repeatedly punched Plaintiff in his face and body, as Plaintiff cries and screams for help.

Video Cam : August 13, 2021: Axon Body 3 X 6031388A

34. Officer Bracco is believed to be wearing the body cam recorder which depicts the incident complained of in this Complaint.

35. At 20:45:57 officer Bracco is seen sitting in his police car on what is believed to be Madison Ave. New York, New York.

36. At 20:46:19, officer Bracco can be seen driving his police vehicle along Madison Ave.

37. At 20:46:30, officer Bracco stops his vehicle in front of 1550 Madison Ave. New York, New York.

38. At 20:46:34, Bracco enters the store alone. The street appears empty with no one in sight.

39. At 20:46:37, officer Bracco is seen entering the store as Plaintiff Bracy is standing alone at the counter with his back facing officer Bracco.

40. Plaintiff was wearing a white tee shirt with a black bag wrapped around his shoulders.
41. At 20:46:43, officer Bracco can be seen confronting Plaintiff at the counter and uttering some words directed at the Plaintiff, as officer Aiello is shown entering the store.
42. At 20:46:48, the officers can be seen grabbing the Plaintiff around Mr. Bracy's arms and shoulders.
43. At Plaintiff begins to yell and scream " why yall doing this to me! As the officers are grabbing Plaintiff and forcing Plaintiff to the floor.
44. At frame 20:46:49, the officers are shown grabbing Plaintiff and turning Mr. Bracy around with the officer's hands placed around Plaintiff's neck..
45. At 20:46:52, the officers have both of Plaintiff's hands behind his back. Plaintiff is showing no resistance. One of the officers can be heard yelling aloud" put your fucking hands behind your back"!
46. At 20: 47:01, the video depicts both officers, Bracco and Aiello with their hands around Plaintiff's body forcing Mr. Bracy to the ground.
47. At 20:47:01, Mr. Bracy can be heard screaming and pleading with the officers that "I didn't do anything"! The officers continue to curse at the Plaintiff who is lying helplessly on the floor and can clearly be seen as not resisting arrest.
48. At 20:47: 06, one of the Defendant police officers is shown on the video punching Plaintiff with his fists as Plaintiff body is on the floor.
49. Plaintiff is pleading over and over again that "I didn't do anything" ! The officers however continue to curse at the Plaintiff.
50. At 20: 47:29, the officers have Plaintiff in handcuffs.

51. Frame 20:47: 32, shows the officers taking Plaintiff away from the counter towards the rear of the store.

52. 20:47:36, Plaintiff is on the floor of the store screaming and yelling “ help, help” as the officers continue to tackle the Plaintiff and turning Plaintiff around.

53. 20:47:51, Plaintiff can be heard crying as both officers are on top of the Plaintiff yelling “give me your fucking hands”!

54. 20:47:54, Plaintiff can be heard yelling “ why yall doing this to me”!

55. At frame 20: 48:00 the frame is blackened without visibility the audio , one of the officers is heard saying” get him up”! Plaintiff was still lying on his back with the weight of two officers on top of him.

56. Not once during the course of the encounter described herein, did the officers inform Mr. Bracy of why he was being arrested.

57. At 20: 48:14, Plaintiff can be heard screaming “ Get off me , get off me, Get off me”!

58. At 20: 48: 18 the video cam goes black and there is no visibility.

59. At 20: 51:03, visibility is reestablished which shows a wreckage to the store with items off the shelves and on the floor from the actions of the two officers.

60. The video ends at 20:52.

61. Mr. Bracy face was swollen and bleeding with multiple cuts, bruises, abrasions and lacerations to his face, and legs caused by officers Bracco and Aiello’s unreasonable seizure on August 13, 2021, when the officers seized Plaintiff because Plaintiff had allegedly violated the traffic laws of the State of New York. Plaintiff, however was never charged with traffic infractions.

62. Plaintiff sought and received medical treatment subsequent to his release from Rikers Island after his arrest.

Arrest Report:

63. Officer Bracco prepared and file the arrest report claiming Plaintiff “ Did resist arrest, flailing arms, pushing/shoving officers on scene causing and excessive amount of damage to the above listed location....”

64. Officer Bracco admitted in his arrest report that he used force against Mr. Bracy by using a hand strike because Plaintiff was armed.

65. At the time officer Bracco inflicted blows to Plaintiff’s face and body, officer Bracco had had no knowledge that Plaintiff had an unloaded weapon inside his bag.

66. Officer Bracco’s admitted use of force was made in an attempt to cover up his unlawful beating of Plaintiff.

67. The video clearly shows that Plaintiff was not resisting arrest at the time the underlying officers seized hm inside 1550 Madison Ave.

68. The video also clearly shows that Mr. Bracy had no opportunity to raise his arms or flail his arms as reported by officer Bracco.

69. The cam recorder also shows the officers slamming Plaintiff around in the store which caused the damage to the store.

70. The officers removed Plaintiff from the premised and searched Plaintiff’s bag and found a weapon possessed by Plaintiff Bracy.

71. The weapon was not loaded.

72. Plaintiff however, did possess a magazine clip containing ammunition.

73. Mr. Plaintiff was charged with several counts of Criminal Possession of a Weapon and Resisting Arrest.

74. Plaintiff was offered and accepted a guilty plea of a lesser charge and was sentenced to probation.

75. The causes of action in this case are predicated upon the extreme and unreasonable seizure and unreasonable use of force in direct violation to the Fourth and Fourteenth Amendment to the Constitution of the United States .

Injuries

76. Plaintiff's eyes were swollen and blacken when the Defendant officers repeatedly punched Mr. Bracy in his face.

77. Photographs were taken depicting Plaintiff's facial injuries, swollen face ,with cuts to his face, and lacerations and abrasions to his legs caused by the officer's unlawful infliction of force during Plaintiff's seizure for a minor alleged traffic infraction.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS VINCENT
BRACCO AND ANDREW AIELLO FOR VIOLATING PLAINTIFF'S RIGHT TO BE
FREE FROM UNREASONABLE SEIZURE AND UNREASONABLE USE OF FORCE
UNDER THE FOURTH AND FOURTEENTH AMENDMENTS TO THE
CONSTITUTION OF THE UNITED STATES**

78. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs 1 through 77, with the same force and effect as though more fully set forth at length herein.

79. That on August 13, 2021, at approximately 8:00 pm, inside a commercial store located at 1550 Madison Ave., New York, New York, Plaintiff Malik Bracy was brutally beaten by Defendants, police officers Vincent Bracco and Andrew Aiello which was partially captured on

video tape via the officers' body cam recorder during Plaintiff's arrest for violating traffic laws for which Plaintiff was never charged.

80. Plaintiff was harassed, beaten, arrested, ridiculed and humiliated by the Defendants police officers who use extreme and excessive, and unreasonable force in arresting Plaintiff Malik Bracy as set forth more fully in the aforementioned \

81. Mr. Bracy suffer significant multiple facial injuries to his face, legs and body, cuts, bruises, lacerations and, abrasions when the Defendant officers threw Plaintiff to the floor and began to beat Plaintiff in his face and body while Plaintiff was lying helpless on the floor offering no resistance.

82. Emergency Medical Technicians were called by the New York City Police Department 23rd precinct to treat Mr. Bracy's injuries.

83. Plaintiff was taken to Central Booking at 100 Centre St, New York, New York where he was treated at the infirmary for his injuries.

84. Plaintiff Bracy was unreasonably seized by officers Bracco and Aiello who violated Plaintiff's Constitutional right to be free from unreasonably seizure including the use of excessive force during an arrest for a minor traffic violation.

85. Mr. Bracy had not threatened officers Bracco, or Aiello, at any time prior to or during the course of his arrest, nor was Plaintiff resisting arrest or fleeing.

86. Mr. Bracy, made no attempt to flee from the officers at the time of his arrest.

87. The video tape recorder clearly shows that Plaintiff was a non-violent, non-fleeing, non-threatening, suspect who made no attempt to resist arrest..

88. Officer Bracco's police reports indicated that the reason he approached Plaintiff inside 1500 Madison Ave, New York, New York because " At TPO Deft was observed with a large

disorderly group creating a public disturbance. Deft was than[then] observed walking across street disobeying traffic signals on multiple occasions impeding the steady flow of traffic. Upon approach, Deft began to resist by pushing /shoving and flailing arms from officers in an attempt to escape. Deft was than [then] found to be in possession of a loaded blackinterarms firestar plus, 9mm cal semi-automatic firearm...”

89. Bracco’s statement however, are contradicted from the body cam recorder that officer Bracco was wearing which clearly depicts officer Bracco and Aiello’s violence inflicted against the Plaintiff as soon as the officers entered the store on August 13, 2021 at 20: 46 pm.

90. The video shows Plaintiff standing at the front counter. Plaintiff was unaware of who had grabbed him until he was forced to turn around by the officers who immediately threw Plaintiff to the floor and began to beat Mr. Bracy as Plaintiff was lying on the floor crying and screaming for help.

91. The Fourth Amendment forbids the use of substantial force against a non-threatening suspected misdemeanor who is not fleeing, resisting arrest or posing any risk to the safety of other.

92. For the reasons set forth herein, officers Vincent Bracco and Andrew Aiello are liable to the Plaintiff pursuant to 42 U.S.C Section 1983 for the physical injuries and emotional distress due to the officers’ unreasonable and unlawful seizure and unreasonable use of force in violation of Plaintiff’s rights under the Fourth and Fourteenth Amendments to the Constitution of the United States.

**AS AND FOR A SECOND CAUSE OF ACTION AGAINST CITY OF NEW YORK FOR
NEGLIGENT FAILURE TO TRAIN, SUPERVISE, OR DISCIPLINE POLICE
OFFICERS VINCENT BRACCO AND ANDREW AIELLO**

93. That Plaintiff repeats, reiterates and realleges each and every allegation contained in Paragraphs 1 through 92, with the same force and effect as though more fully set forth at length herein.

94. That the failure of the City of New York and the New York City Police Department to adequately **train, supervise, discipline** or in any other way control the behavior of the Defendant police officers use of force in the exercise of their police functions in stopping and arresting non-threatening and non- fleeing individuals who were suspected of traffic infractions is evidence of the reckless lack of cautious disregard for the rights of the public including Plaintiff Malik Bracy.

95. That the Defendants officers exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of reasonable police officers under similar circumstances as described above.

96. The failure to train, supervise, discipline or in any other way control officers Bracco and Aiello in the exercise of their police functions, and their failure to enforce the laws of the State of New York and the regulations of the New York City Police Department, including submitting false police reports was carried out willfully, wantonly, maliciously and with such reckless disregard for the consequences as to display a conscious disregard for the dangers of harm and injury to the citizens of New York, including Plaintiff, Malik Bracy.

97. Because of the acts alleged herein, the failure of the City of New York to discipline the Defendants and the continued employment of the defendants, presents a clear and present danger to the citizens of the City of New York.

98. The injuries sustained by Mr. Bracy resulted from the negligence of Defendant City of New York and the New York City Police Department in employing and continuing to employ without

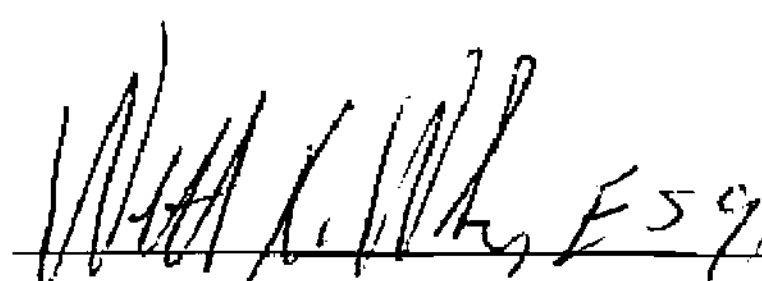
adequate training and supervision, police officers who are subject to engaged in inflicting violence upon non-threatening individuals and who have unsuitable temperament and insensitive dispositions which was or should have been known to the City of New York and the New York City Police Department.

REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully demands the following judgment be entered as follows:

- (A) Compensatory damages in the amount to be set by jury trial.
- (B) By reason of the wanton, willful and malicious character of the conduct complained of herein, punitive damages against officers Vincent Bracco and Andrew Aiello, in the amount to be determined by jury trial.
- (C) An award to Plaintiff of the costs and disbursements herein.
- (D) An award of reasonable attorney fees under 42 U.S.C. Section 1988.
- (E) Such other and further relief as this Court may deem just and proper.
- (F)

Dated: January 27, 2022
Bronx, New York

By,  _____

Welton K. Wisham, Esq
The Law Office of Welton K. Wisham
1200 Waters Pl. Suite 105,
Bronx, New York 10561
(718) 924-3557
Attorney for the Plaintiff

SUPREME COURT STATE OF NEW YORK
BRONX COUNTY

X

MALIK BRACY

AFFIDAVIT

Plaintiff,

- against -

CITY OF NEW YORK, P.O. VINCENT BRACCO,
SHIELD NO. 26344, 23rd PRECINCT, IN HIS INDIVIDUAL
CAPACITY, AND P.O. ANDREW N. AIELLO, TAX ID NO. 959447,
IN HIS INDIVIDUAL CAPACITY,

Defendants.

X

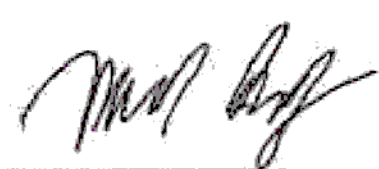
STATE OF NEW YORK)

SS

COUNTY OF BRONX)

I, **Malik Bracy**, being duly sworn deposes and says under penalty of perjury that:

I am the Plaintiff in the above captioned matter herein: that I have read the forgoing
Summons and Complaint and knows the contents thereof: that the same is true to my own
knowledge, except as to those matters therein stated to be allege upon information and belief,
and as to those matter, I believe them to be true.


Malik Bracy
165 Saint Ann's Ave.
Bronx, New York

This 28 th day of January, 2022

NOTARY PUBLIC

WILTON K. WISWAM, EBC
Notary Public, State of New York
No. 02016386733
Qualified in Bronx County
Commission Expires 1-28-2023